

Criminal Procedure Act 51 of 1977

CRIMINAL PROCEDURE ACT 51 OF 1977

Selected themes

- Arrest without warrant (s 40) and with warrant.
- Bail and release on warning (Chapter 9) — constitutionalised through s 35 of the Constitution and case law such as *S v Dlamini*; *S v Dladla*; *S v Joubert*; *S v Schietekat* 1999 (4) SA 623 (CC).
- Charge sheets and indictments.
- Plea and sentence agreements (s 105A).
- Trial procedure in lower and superior courts.
- Competent and compellable witnesses; privilege.
- Sentence options including imprisonment, fine, correctional supervision, suspended sentences and diversion frameworks interacting with the Child Justice Act 75 of 2008.

NOTE: Educational summary for SA research demo. Always verify current amendments.

— End of curated extract. Verify official text before reliance. —